

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID BENJAMIN CARLSON,

Petitioner

VS.

EKAMA ONOFIOK CARLSON,

Respondent

) Case Number: FDI-24-799426

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

At the 9/1/2026 hearing, the Court intends to adopt the following findings and orders absent good cause shown. The parties are ordered to appear in person or via Zoom video at 9am on 9/1/2026 in Department 404 to discuss Father's request that the Court appoint a third-party accountant to manage the yearly support true-up. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner David Carlson (Father) and Respondent Ekama Carlson (Mother). The parties married on 3/31/2012. While the parties disagree regarding their exact date of separation, they agree they separated in early 2024, for a marriage of at least 11 years. The parties have two minor children, Basse (DOB: 12/26/2014) and Esien (DOB: 4/23/2021). Both parties are currently self-represented.
- 2) At the prior 10/9/2025 hearing (per the Findings and Order After Hearing filed 10/17/2025), the Court adopted its Tentative Ruling (without objections) which requires Mother to pay Father

1 effective 11/1/2025 \$1,954 per month for guideline child support and \$1,894 per month for
2 temporary guideline espousal support, for a total of \$3,848 per month. The support calculation
3 includes an imputation of \$100,000 in annual income to Father and Mother's earning \$10,000 per
4 month in salary, \$15,000 per month in self-employment income, and \$1,218 per month in other
5 taxable income. The Court noted that the Work Search Order against Father remained in effect. A
6 review hearing was set for 3/3/2026 (which was later continued to 3/17/2026).

7 3) On 2/23/2026, Father filed a Declaration Regarding Work Search and Employment Status. Father
8 states, "Respondent has not paid me spousal support since she filed her TRO in June 2025 and
9 owes me over \$40,000 in support arrears... The current situation is not sustainable for me... The
10 Court is already imputing me income of \$100,000 per year, which seriously reduces the support
11 order and is unsustainable for me. Given my employment and income history, imputing any
12 higher level of income when I have been actively seeking work would be detrimental to our
13 children as I can already not afford to pay for basic living expenses."

14 4) On 2/24/2026, Mother filed a Declaration. Mother states her actual monthly income in 2025
15 averaged \$15,380, which is approximately \$10,000 less per month than what the current support
16 order is based on. Mother asks the Court to base the current support obligation upon Mother's
17 earning \$15,000 (i.e., \$11,916 per month in W2 income and \$3,084 per month in self-
18 employment income). Mother states that any income earned above \$15,000 can be captured in an
19 annual true-up. Mother asks the Court to impute \$155,000 in income to Father in line with the
20 vocational evaluation report prepared by Soma McCandless dated 4/17/2025. Mother attached
21 Ms. McCandless' report to her declaration. It states, "Based on his education, experience, and the
22 figures above, Mr. Carlson could expect to earn a base salary in the range of \$100,000 to
23 \$155,000 per year in the above-mentioned roles... After returning to full-time work and having
24 recent work experience, if successful, Mr. Carlson can increase his future earnings." Mother
25 states Father is not actually spending 10 hours per week seeking work or applying to 5 jobs per
26 week. Mother states she has been unable to keep up with Court-ordered spousal support payments
27 due to financial hardship caused by Father's ongoing litigation.

28 5) On 3/11/2026, Father filed a Response. Father disputes Mother's claims that he is not diligently
29 seeking work, that he abused Mother, and that he should be imputed with additional income.

1 Father states that Mother's dip in income in 2025 was temporary and a one-time event and that
2 Mother states herself that collections improved in September 2025. Father also states that if
3 Mother did overpay support in 2025, the parties have a true up in place to handle reimbursement
4 to the other party. Father also accuses Mother of not earning to her capacity. Father states that
5 Mother's current reported income of ~\$15,000 per month is 2-3 times less than what is currently
6 available in the job market and 3 times less than what Mother earned at her previous job at
7 Kaiser. Father asks the Court to maintain the current support orders, order Mother to seek work if
8 she is unable to increase her earning capacity to her previous income at Kaiser, and order
9 discovery of her business' books before the 2025 true up.

10 6) Following the 3/17/2026 review hearing, the Court issued a Findings and Order After Hearing on
11 4/17/2026 which reserves jurisdiction to modify child and temporary spousal support retroactive
12 to the date Father begins his new job. The Court also denied Mother's request to impute
13 additional income to Father, and denied Mother's request to modify child and temporary spousal
14 support retroactive to a date preceding the date Father begins his new job. The Court further
15 reserved jurisdiction over what may be owed for the 2024 support true-up, ordered the parties to
16 meet and confer on this issue, and ordered the parties to file a new Request for Order if they were
17 unable to reach an agreement. The Court set a future hearing date of 6/30/2026 (which was later
18 continued to 9/1/2026) to determine (a) whether to modify child and temporary spousal support
19 retroactive to the date Father began his new job to take into account (i) Father's new employment
20 earnings and (ii) possibly lowered base income and self-employment income for Mother; and (b)
21 whether the Temporary Restraining Order filed 3/9/2026 should be modified to permit channels
22 of communication between the parties regarding legal issues (e.g., how the parties can
23 communicate to calculate support true-ups).

24 7) On 6/24/2026, Father filed an Income and Expense Declaration. Father states that he is 44 years
25 old and has a B.S. in Biochemistry and Molecular Biology and an M.S. in Financial Analysis.
26 Father also indicates that he has passed the SIE, Series 86, and Series 87 examinations. Father
27 states that he has worked as a retail sales associate for Beverages & More since 3/16/2026, where
28 he works 5 hours per week and is paid \$19.20 per hour. Father also states that he has worked as a
29 retail sales professional for Xfinity since 3/30/2026, where he works 40 hours per week and earns

1 \$19.20 per hour. Father further states that he has been self-employed for David Carlson
2 Consulting LLC (which is a biotech consulting business) since 4/27/2026, for which he works 13
3 hours per month in billable hours and is paid \$150 per hour. Father states that last month he
4 earned the following amounts: \$3,311 in salary and wages, \$214 in overtime, \$1,823 in
5 commissions or bonuses, and \$1,404 in net self-employment income. Father states that his
6 monthly expenses total \$7,185. Father states that he has \$6,047 in liquid savings and \$2,000 in
7 personal property. Father states that he owes \$21,329 in student loans, \$1,677 in credit card debt,
8 and \$113,000 for a personal loan which he states was incurred to pay attorney's fees.

- 9 8) On 6/24/2026, Father filed a Declaration Regarding New Jobs. Father states that his current
10 employment at Xfinity is full-time with benefits, and he foresees a potential path to success
11 within the company as a manager, business-sales representation, or a transfer within the company
12 to the finance department. Father states he expects to earn \$61,000 per year through his position
13 with Xfinity. Father states that he also began working at BevMo in March 2026 and works every
14 chance he can get, including closing every Monday, which means that he works 12+ hour days on
15 Monday working at Xfinity and then Bevmo. Father states that his work for Bevmo is a "nice
16 supplement to my income." Father also states that he has formed David Carlson Consulting LLC
17 and works as a biotech consultant with TheraVac Biologics. Father states that he his agreement is
18 limited to 20 hours per month (at a rate of \$150 per hour), but they are "discussing a permanent
19 position that could become available in the Fall." Father states that he estimates he is currently
20 able to earn \$102,000 per year, and agrees for that figure to be used in the support calculation
21 commencing 7/1/2026. Father asks that the Court keep the imputed \$100,000 salary through
22 3/31/2026 for purposes of the "future true-up." Father estimates that Mother is currently earning
23 \$550,000. Father states that after the last support hearing on March 17th during which Mother
24 claimed financial hardship, Mother provided Father with her proposed vacation schedule, which
25 included international travel with the kids for ~12 days over Father's day and a second week-long
26 domestic trip later this summer. Father notes that it is not clear how the parties are to perform the
27 yearly support true-up given that the temporary restraining order limits Father's communication
28 with Mother to just communications regarding exchanges. Father requests that the Court appoint
29 a third-party accountant to manage the yearly true-up. Father also states that Mother "provides

1 little or no information regarding add-on expenses” and wants the Court to provide explicit rules
2 for add-on expenses. Father further states that Mother sends support checks at various times each
3 month, backdates checks to the 1st of the month, but mails the check as much as 7 or more days
4 later; Father requests the Court “set a postmark date each month for payment consistency.” Father
5 also discusses several custody and visitation issues in his declaration, and requests that the Court
6 order the children to be removed from Lycee France De San Francisco and attend public school
7 through San Francisco Unified School District.

8 9) On 6/24/2026, Mother requested to continue the originally scheduled 6/30/2026 review hearing
9 because Mother needed additional time to prepare complete and accurate financial statements.

10 10) On 6/26/2026, the Court granted Mother’s request to continue the 6/30/2026 hearing to 9/1/2026.

11 11) On 8/13/2026, Mother filed an Update Declaration. Mother states that the current support
12 calculation was based on an estimate of projected monthly income which did not come to fruition.
13 Mother states that in 2025, rather than earning \$25,000 in monthly net self-employment income,
14 she actually earned average net monthly income of \$15,380, resulting her paying support based
15 on income substantially greater than she actually earned. For 2026, Mother estimates that her net
16 self-employment income will average in the rage of \$3,500 to \$8,000 per month. Mother requests
17 that the Court use \$3,500 per month for net self-employment income when calculating support
18 with any additional income to be accounted for in an annual true-up. Mother also asks the Court
19 to impute \$155,000 per year in annual salary to Father. Mother states, “Since forming my practice
20 in 2022, my business deductions have been limited to ordinary and necessary expenses required
21 to operate the medical practice, maintain legal and licensing compliance, and provide patient care.
22 Deducted expenses are as itemized in schedule C of my business tax returns and in professionally
23 prepared annual profit and loss statements with one exception: depreciation, amortization, 50% of
24 meal expenses, and California franchise taxes are added back to income and not deducted as
25 business expenses for purposes of calculating income available for support.” Mother states, “I am
26 not voluntarily unemployed, underemployed, or working below my professional qualifications. I
27 continue to work to increase the practice's patient volume, revenue, and profitability.” Mother
28 states that the decision to transition from her previous lucrative position as a full-time surgeon
29 was a joint decision made with Father which coincided with the decision to have a second child.

1 The goal was to transition to “a practice combining surgery with more flexible general
2 dermatology so that I could meet our children's daily needs while David pursued his demanding
3 finance career. We agreed that private practice would provide the flexibility and autonomy
4 necessary to accomplish this.” Mother also states, “My historical gross business profit over the
5 preceding three years is as follows: \$1,236,886 in 2023, \$1,405,392 in 2024, and \$1,116,442 in
6 2025. My historical wage income is as follows: \$177,504 in 2023, \$140,709 in 2024 and
7 \$151,950 in 2025. My historical self-employment income is: \$147,158 in 2023, \$145,449 in
8 2024, and \$15,267 in 2025. The sharp decline in self-employment income in 2025 is attributed to
9 a lower gross business profit for the year, and higher business overhead (for example markedly
10 increased costs of goods due to Trump tariffs, worsening inflation, direct purchase of capital
11 expenditure necessary to run the business, repayment of business loans etc).” Mother states
12 Father remains underemployed. Mother states, “From January 2021 and at the time of marital
13 separation in January 2024, David was an associate research equity analyst at Wedbush earning
14 between \$139,000- \$166,000 as an unlicensed broker. Because he completed his required
15 brokerage licensure requirements in December 2023 (see publicly available FINRA broker
16 license search) his bonus earnings would have been expected to increase in July 2024. Per
17 financial markets data on compensation in the US, fully licensed mid-level or associate equity
18 research analysts, which is David’s most recent role, earned between \$190,000 and \$400,000 in
19 San Francisco in 2023 and 2024 (Exhibit C). But David did not remain with Wedbush long
20 enough to see any such increases in bonus. He was let go from this position in May 2024.”
21 Mother states that Father’s work search efforts have been minimal. Mother states Mother has not
22 contacted Garth Timoll, who is a CEO of a top venture capital firm, who previously assisted
23 Father to find employment in 2021, nor has he contacted Matthew Barcus, Vice President of
24 Equity Research in Biotech at Jeffries, regarding open equity research positions. Mother states
25 Father continues to direct his work efforts towards speculative or unpaid ventures that he
26 eventually abandons. Mother states, “Our children should not have to lose their school,
27 established activities, childcare, friendships, family travel, or experience housing instability
28 because David remains underemployed despite his demonstrated ability and opportunity to earn
29 substantially more. It is in their best interests that both parents contribute according to their

1 earning capacities rather than require the children to bear the consequences of David's decision to
2 devote substantial working capacity to ventures producing little or no income instead of
3 compensated employment consistent with his qualifications and earning capacity."

4 12) On 8/13/2026, Mother filed an Income and Expense Declaration.

5 13) On 8/13/2026, Mother filed a Statement of Support Calculation. Mother's proposed support
6 calculation calls for Mother to pay Father \$1 in base child support and \$0 in base temporary
7 spousal support.

8 14) The Court notes the following future hearing dates:

9 a. 10/1/2026 – hearing on Mother's Request for Order filed 6/30/2026 seeking sole legal
10 and physical custody of the children, and reduced timeshare for Father. The Court notes
11 this would be a change to the current orders which provide for joint legal and joint
12 physical custody of the children and for a 2-2-5-5 parenting schedule.

13 b. 10/21/2026 – second long-cause hearing date on Mother's Order to Show Cause re:
14 Contempt filed 10/17/2025 wherein Mother alleges Father violated the First Amended
15 Temporary Restraining Order.

16 15) The Court also notes that on 2/19/2026, Judge Chan concluded a 5-day trial on Mother's Request
17 for Domestic Violence Restraining Order filed 6/4/2025. The parties agreed to continue the trial
18 for a period of one year, which included extending the Temporary Restraining Order for one year.
19 The parties also agreed that if there were no acts violating the Temporary Restraining Order for a
20 period of one year, Mother's Request for Domestic Violence Restraining Order would be
21 dismissed. The Temporary Restraining Order (filed 3/9/2026) is currently set to expire on
22 2/23/2027.

23 **B. Findings and Order**

24 1) There are two issues on for this review hearing: (a) whether to modify child and temporary
25 spousal support retroactive to the date Father began his new job to take into account (i) Father's
26 new employment earnings and (ii) possibly lowered base income and self-employment income
27 for Mother; and (b) whether the Temporary Restraining Order filed 3/9/2026 should be modified
28 to permit channels of communication between the parties regarding legal issues (e.g., how the
29 parties can communicate to calculate support true-ups).

2) Base Child and Temporary Spousal Support

- a. The Court finds good cause to modify child and temporary spousal support retroactive to 7/1/2026, which is when Father expects he will begin earning more income through David Carlson Consulting LLC. The Court finds that Father's new employment as well as Mother's decreased earnings warrant a modification of child and temporary spousal support.
- b. The Court does not find good cause to impute additional income to Father beyond the \$102,000 in annual income that Father anticipates he will be earning with his new positions of employment and self-employment. This finding is made without prejudice to the Court's ability to impute additional income to Father when the Court adjudicates long-term spousal support. If the Court finds good cause to impute additional income to Father when it adjudicates long-term spousal support, the Court may also modify child support to impute additional income to Father.
- c. The Court also does not find good cause to impute to Mother more income than what she currently reports earning. This finding is made without prejudice to the Court's ability to impute additional income to Mother when the Court adjudicates long-term spousal support. If the Court finds good cause to impute additional income to Mother when it adjudicates long-term spousal support, the Court may also modify child support to impute additional income to Mother.
- d. Effective 7/1/2026, in accordance with the XSpouse report attached hereto and incorporated by reference, Mother shall pay Father base child support of \$876 per month and base temporary spousal support of \$474 per month, for total base support of \$1,350 per month. This amount shall be paid to Father in full no later than the 5th of each month. Mother's support checks shall be mailed to Father and post-dated no later than the 2nd of each month.
- e. The Court will use the following inputs in the XSpouse calculation:
 - i. Father estimates that he will be earning \$102,000 annually going forward, which averages out to \$8,500 per month.

1 ii. The Court is using the income inputs for Mother provided by Mother in her
2 proposed XSpouse calculation, but is not including mandatory retirement, as the
3 Court does not see evidence that Mother is required to contribute to a retirement
4 plan.

5 3) Child Support Add-Ons

- 6 a. The XSpouse calculation shows that, after payment of base child support and temporary
7 spousal support, the parties' net spendable incomes are essentially equalized.
- 8 b. Effective July 1, 2026, the parties shall share equally all reasonable uninsured healthcare
9 costs of the children as well as the costs for the children to participate in any
10 extracurricular activity in which they are currently enrolled or in which the parties
11 mutually agree in writing the children can be enrolled.
- 12 c. The procedure for requesting and paying reimbursement claims for uninsured healthcare
13 costs shall be as set forth in Judicial Council Form FL-192.
- 14 d. The procedure for requesting and paying reimbursements for qualifying extracurricular
15 activity costs shall be as follows. When a party (e.g. Party A) pays for a qualifying
16 extracurricular activity cost, within 30 days of paying the expense, Party A shall present
17 to Party B: (a) an itemized statement of charges, (b) proof of payment, and (c) the amount
18 due and owing from Party B. Within 10 days of receiving this information, Party B shall
19 submit a payment to Party A for Party B's share of the expense.
- 20 e. At each annual true-up, the parties shall recalculate their respective net spendable
21 incomes after payment of base child support and temporary spousal support and shall
22 recalculate each party's share of reasonable uninsured healthcare costs for the children
23 based on the parties' respective net spendable incomes after payment of support. Any
24 resulting reimbursement or credit shall be included in the true-up.

25 4) Support Arrears or Credits Due for the Period 7/1/2026 – 8/31/2026

- 26 a. Any support arrears or credits due for the period 7/1/2026 – 8/31/2026 and any
27 reimbursements due for child support add-ons for that same period as a result of the
28 modification of child and temporary spousal support orders set forth above shall be
29 discussed and accounted for during the support true-up for 2026.

1 5) Annual True-Up of Support

- 2 a. The parties shall perform an annual true-up of support. During the true-ups, the parties
- 3 shall recalculate child and spousal support based on the parties' total income earned
- 4 during the previous year, calculate any support arrears or credits owed, and calculate any
- 5 additional child support add-on reimbursements owed for reasonable uninsured
- 6 healthcare expenses and extracurricular activity costs based on the parties' net spendable
- 7 incomes for support based on each party's annual income.
- 8 b. No later than February 28th of each year, both parties shall provide to the other party
- 9 documentation showing total W2 income earned during the immediately preceding year
- 10 as well as Profit and Loss Statements for the immediately preceding year showing net
- 11 self-employment income.
- 12 c. When calculating net self-employment income, the parties shall add back in depreciation,
- 13 amortization, 50% of meal expenses, and California franchise taxes.
- 14 d. When recalculating child and spousal support for the immediately preceding year, the
- 15 income inputs used in the XSpouse calculation attached hereto and incorporated herein
- 16 set a floor in terms of the parties' incomes. In other words, the true-up is only meant to
- 17 capture support owed for income earned in addition to the income figures used for each
- 18 party in the XSpouse calculation.
- 19 e. Any child support arrears or credits owed as a result of the true-up shall be paid no later
- 20 than March 31st.

21 6) Other Orders

- 22 a. The Work Search Order remains in full force and effect.
- 23 b. Regarding Father's request that the children attend public school this year, the Court
- 24 finds that issue is not currently before the Court. Either party may file a new Request for
- 25 Order to address this issue.

26 7) The Court will prepare the Findings and Order After Hearing.

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28

29

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	2	0	2026			Guideline	Proposed
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	17237	17237
Filing status	HH/MLA	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	2	Support		Father		
Wages+salary	8500	11916	Father	6695	Payment cost/benefit	1350	1350
Self-employed income	0	3084	Mother	10542	Net spendable income	8045	8045
Other taxable income	0	1399	Total	17237	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	47%	47%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	876	Total taxes	1805	1805
401(k) employee contrib	0	0	S.Clara SS	474	Dep. exemption value	0	0
Adjustments to income	0	0	Total	1350	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	6476	6476
CS paid prev marriage	0	0			Mother		
Health insurance	0	1875			Payment cost/benefit	-1350	-1350
Other medical expense	0	0			Net spendable income	9192	9192
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	53%	53%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	876	Total taxes	3982	3982
Qual bus income ded	0	0	SS	474	Dep. exemption value	0	0
Required union dues	0	0	Total	1350	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	8459	8459
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	0	0	0	Father	876	Mother	876	Mother
	50 - 50	0	0	0	Father	329	Mother	329	Mother
	50 - 50	0	0	0	Father	548	Mother	548	Mother